New York State Child Day Care Regulations
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Part 413
Child Day Care Definitions, Enforcement and Hearings

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Section 413.1 Scope

The definitions in this Part apply to all references to day care programs included in this Title. The provisions in this Part governing enforcement and hearings apply to all child day care programs addressed in Parts 414, 416, 417 and 418 of this Title. The provisions in this Part apply to all child care children, typically developing and otherwise.

Section 413.2 Definitions

(a) Child day care.

(1) Child day care means care for a child on a regular basis provided away from the child's residence for less than 24 hours per day by someone other than the parent, stepparent, guardian or relative within the third degree of consanguinity of the parents or step-parents of such child. A relative within the third degree of consanguinity of the parent or step-parent includes: the grandparents of the child; the great-grandparents of the child; the great-great-grandparents of the child; the aunts and uncles of the child, including the spouses of the aunts and uncles; the great-aunts and great-uncles of the child, including the spouses of the great-aunts and great-uncles; the siblings of the child; and the first cousins of the child, including the spouses of the first cousins.

(2) Child day care does not refer to care provided in:

(i) a summer day camp, traveling summer day camp or children's overnight camp as defined in the State Sanitary Code;

(ii) a program for school-age children operated solely for the purpose of religious education, sports, classes, lessons or recreation;

(iii) a facility providing day services under an operating certificate issued by the New York State Office of Children and Family Services (OCFS);

(iv) a facility providing day treatment under an operating certificate issued by the Office of Mental Health or by the Office for People With Developmental Disabilities; or

(v) a kindergarten, pre-kindergarten or nursery school for children three years of age or older, or a program for school-age children conducted during non-school hours, operated by a public school district or by a private school or academy which is providing elementary or secondary education or both in accordance with the compulsory education requirements of the Education Law, provided that such kindergarten, pre-kindergarten, nursery school or program is located on the premises or campus where the elementary or secondary education is provided. Provided, however, a kindergarten or pre-kindergarten operated by a public school district shall not be considered a child day care if the kindergarten or pre-kindergarten is not located on the premises or campus where the elementary or secondary education is provided.

(b) Types of care.

(1) Child day care center means a program or facility which is not a residence in which child day care is provided on a regular basis to more than six children for more than three hours per day per child for compensation or otherwise, except those programs providing care as a school-age child care program as defined in this section. The name, description or form of the entity which operates a child day care center does not affect its status as a child day care center.

(i) Age of children: A child day care center may provide care for children six weeks through 12 years of age; for children 13 years of age or older who are under court supervision; for children 13 years of age or older who are incapable of caring for themselves when such inability is documented by a physician, psychiatrist or psychologist; and, in extenuating circumstances, for children under six weeks of age when prior approval has been obtained from OCFS. Children who attain the maximum age allowed during the school year may continue to receive child day care through the following September 1 or until they enter school for the following school year.

(ii) Maximum capacity means the maximum number of children authorized to be present at any one time as specified on the child day care center license.

(2) Family day care home shall mean a program caring for children for more than three hours per day per child in which child day care is provided in a family home for three to six children.

(i) There shall be one caregiver for every two children under two years of age in the family day care home.

(ii) A family day care provider may, however, care for seven or eight children at any one time if no more than six of the children are less than school age and the school-aged children receive care primarily before or after the period such as children are ordinarily in school, during school lunch periods, on school holidays, or during those periods of the year in which school is not in session in accordance with the regulations of OCFS

and OCFS inspects such home to determine whether the program can care adequately for seven or eight children.

(iii) Except for children in the legal custody of or boarded out with the provider who are enrolled in school in kindergarten or a grade level higher than kindergarten, all children present must be counted in determining maximum capacity even if they are relatives or are present three hours per day or less.

(iv) A family day care home may provide care for children six weeks through 12 years of age; for children 13 years of age or older who are under court supervision; for children 13 years of age or older who are incapable of caring for themselves when such inability is documented by a physician, psychiatrist, or psychologist; and, in extenuating circumstances, for children under six weeks of age when prior approval has been obtained from OCFS. Children who attain the maximum age allowed during the school year may continue to receive child day care through the following September 1 or until they enter school for the following school year.

(3) Group family day care home shall mean a program caring for children for more than three hours per day per child in which child day care is provided in a family home for seven to twelve children of all ages, except for those programs operating as a family day care home, which care for seven or eight children. A group family day care program may provide child day care services to four additional children if such additional children are of school age and such children receive services only before or after the period such children are ordinarily in school or during school lunch periods, or school holidays, or during those periods of the year in which school is not in session.

(i) There shall be one caregiver for every two children under two years of age in the group family home.

(ii) A group family day care home must have at least one assistant to the provider present when child day care is being provided to seven or more children when none of the children are school age, or nine or more children when at least two of the children are school age and such children receive services only before or after the period such children are ordinarily in school or during school lunch periods, or school holidays, or during those periods of the year in which school is not in session. This assistant shall be selected by the group family day care licensee and shall meet the qualifications established for such position by the regulations of OCFS.

(iii) Except for children in the legal custody of or boarded out with the provider who are enrolled in school in kindergarten or a grade level higher than kindergarten, all children present must be counted in determining maximum capacity even if they are relatives or are present three hours per day or less.

(iv) A group family day care home may provide care for children six weeks through 12 years of age; for children 13 years of age or older who are under court supervision; for children 13 years of age or older who are incapable of caring for themselves when such inability is documented by a physician, psychiatrist or psychologist; and, in extenuating circumstances, for children under six weeks of age when prior approval has been obtained from the OCFS. Children who attain the maximum age allowed during the school year may continue to receive child day care through the following September 1 or until they enter school for the following school year.

(4) School-age child care program means a program or facility which is not a residence in which child day care is provided to an enrolled group of seven or more children under 13 years of age during the school year before and/or after the period such children are ordinarily in school or during school lunch periods. School-age child care programs also may provide care during school holidays and those periods of the year in which school is not in session, including summer vacation. Such programs must operate consistent with the local school calendar. The name, description or form of the entity which operates a school-age child care program does not affect its status as a school-age child care program.

(i) Age of children: A school-age child care program may provide care for school-age children of any age. If the program provides care for children over 13 years of age, the program must meet all regulatory standards in regard to such children just as if the children were under 13 years of age. No child may be admitted unless the child is enrolled in kindergarten or a higher grade or is at least six years of age. Children may receive care through the conclusion of high school.

(5) Small day care center means a program or facility which is not a residence in which child day care is provided to three through six children for more than three hours per day per child for compensation or otherwise. The name, description or form of the entity which operates a small day care center does not affect its status as a small day care center.

(i) Age of children: A small day care center may provide care for children six weeks through 12 years of age; for children 13 years of age or older who are under court supervision; for children 13 years of age or older who are incapable of caring for themselves when such inability is documented by a physician, psychiatrist or psychologist; and, in extenuating circumstances, for children under six weeks of age when prior approval has been obtained from the OCFS. Children who attain the maximum age allowed during the school year may continue to receive child day care through the following September 1 or until they enter school for the following school year.

(ii) Maximum capacity means the maximum number of children authorized to be present at any one time as specified on the small day care center registration.

(iii) No more than two children under the age of two may be cared for at any one time.

(iv) When any child who is less than two years of age is present, the maximum capacity is five.

(v) When all children present are at least two years of age, maximum capacity is six.

(c) Roles.

(1) Applicant means any individual submitting an application for a license or registration or the director or other individual designated by any association, corporation, partnership, institution, organization or agency submitting an application for a license or registration to represent such entity in the application process.

(2) Assistant means any person who has been selected by the licensee to provide child day care to children in a family or group family day care home.

(3) Caregiver means all persons who are providers, assistants, or substitutes in a family or group family day care home or a small day care center.

(4) Child day care provider is used interchangeably with the terms owner, licensee or registrant, and means any individual, association, corporation, partnership, institution, organization or agency whose activities include providing child day care or operating a facility where child day care is provided. The child day care provider is responsible for all matters related to the operation, oversight and direction of the child care program.

(5) Director means the person or persons who have responsibility for the development and supervision of the daily activity programs for children and the administrative authority and responsibility for the daily operations of a child day care center or school-age child care program.

(6) Employee is used interchangeably with the term staff and means all personnel, including directors, caregivers, and non-caregivers, temporary personnel, teachers, aides, para-professionals, cooks, custodians, administrative staff and any other person(s) employed by a child care program.

(7) Health care consultant means a physician, physician assistant, nurse practitioner or registered nurse who possesses a valid New York State license in his or her field. Such consultant may include a health care professional who is an employee of a local Department of Health.

(8) Health care provider means a licensed physician, physician's assistant, or nurse practitioner.

(9) Health professional means a licensed physician trained in pediatrics or family health or a registered nurse, nurse practitioner or physician's assistant with at least one year of pediatric or public health experience.

(10) Licensed authorized prescriber means a person licensed, currently registered and authorized under the Education Law to issue prescriptions for medication or medical treatment.

(11) Medication Administrant is a physician, physician assistant, registered nurse, nurse practitioner, licensed practical nurse, advanced emergency medical technician or a child care program staff or caregiver who is trained in medication administration, cardio pulmonary resuscitation and first aid and who is designated in the health care plan to administer medication to children in day care programs authorized by OCFS to administer medications.

(12) Provider is the person present at the child care program who has responsibility for the supervision of children and staff, is responsible for daily operations and has administrative authority for the family day care, group family day care, or small day care center.

(13) Substitute means any person who has been selected by the licensee to provide child day care to children in a family or group family day care home or small day care center during short-term, non-recurring absences of the day care provider or assistants. Substitutes who are filling in for the family day care provider must be approved by the OCFS.

(14) Visitor means any person who is not a day care child, staff person, caregiver, volunteer, household member, employee, parent of a child in care, or person authorized to pick up or drop off a child to the day care program.

(15) Volunteer means any unpaid person, that is not in the role of a caregiver or staff as defined herein, who is present at the day care program for the purpose of assisting with care of children or the operation of the child care program. A volunteer is not employed by the program and he or she may not be counted in the supervision ratio. All volunteers have the potential for either unsupervised contact or regular and substantial contact with children in care.

(16) Group teacher means a classroom staff person who, under the supervision of a director, is responsible for planning and supervising age appropriate activities for a given group of children. A group teacher must possess the minimal regulatory qualifications required to oversee the needs and safety of children in a child care center or school age child care group.

(17) Assistant teacher means a classroom staff person who assists the group teacher as part of the teaching staff, works under the supervision of the director and group teacher and whose assignment to a group of children may be considered in calculating compliance with required teacher to child ratios. The assistant teacher must possess the minimal regulatory qualifications required to assist the group teacher in overseeing the needs and safety of children in a day care center or school age child care program group.

(18) Teacher is used to describe when the designated function or responsibility may be performed by either a group teacher or an assistant teacher, and whenever both roles are referenced together.

(d) Miscellaneous.

(1) Children with special health care needs means children who have chronic physical, developmental, behavioral or emotional conditions expected to last 12 months or more and who require health and related services of a type or amount beyond that required by children generally.

(2) Enforcement means the action(s) undertaken or initiated by OCFS when child day care programs are not operated in compliance with all applicable provisions of law and regulation.

(3) Evening care means care provided from late afternoon or evening until children begin their night's sleep.

(4) Infant means a child up to 18 months of age.

(5) License means a document issued by OCFS authorizing a licensee to operate a child day care center in accordance with Subpart 418-1 of this Title or a group family day care home in accordance with Part 416 of this Title.

(6) Mildly ill child means a child who has symptoms of a minor childhood illness which does not represent a serious risk to other children and who is able to participate in the routine program activities with minor accommodations. OCFS health care plan guidelines discuss the symptoms and illnesses which commonly constitute minor illness.

(7) Moderately ill child means a child whose health status requires a level of care and attention that cannot be accommodated in a child day care setting without the specialized services of a health professional. OCFS health care plan guidelines discuss the symptoms and illnesses which commonly constitute moderate illness.

(8) Nap means a short sleep during the day.

(9) Night care means care provided during the hours when children have begun or will be continuing their night's sleep.

(10) OCFS means the New York State Office of Children and Family Services.

(11) Parent means custodial parent(s), legal guardian(s), other persons having legal custody of a child or any other person with whom a child lives who has assumed responsibility for the day-to-day care and custody of the child.

(12) Personal residence means a one or two family dwelling or a single dwelling unit in a multiple dwelling classified for permanent occupancy under the New York State Building Code, except that a community residence shall not be

considered a residence for purposes of the child day care regulations. A one family residence shall be considered to have one dwelling unit and a two family residence shall be considered to have two dwelling units. A dwelling unit must be occupied or used as living space to be used for family or group family day care and considered a residence for purposes of the child day care regulations, except as follows:

(i) when one dwelling unit of a two family dwelling is occupied and is used for family or group family day care, the second dwelling unit may not be used for family day care or group family day care unless the second dwelling unit is also occupied;

(ii) when one dwelling unit of a two family dwelling is occupied and is not used for family day care or group family day care, the second dwelling unit need not be occupied to be used for family day care or group family day care by an occupant of the first dwelling unit;

(iii) where a property includes a dwelling unit which is occupied and is used for family day care or group family day care and there is a separate building on the property under the control of the occupant of the dwelling unit which contains an additional dwelling unit, the additional dwelling unit may not be used for family day care or group family day care unless the second dwelling unit is also occupied;

(iv) where a property includes a dwelling unit which is occupied and is not used for family day care or group family day care and there is a separate building on the property under the control of the occupant of the dwelling unit which contains an additional dwelling unit, the additional dwelling unit need not be occupied to be used for family day care or group family day care by an occupant of the first dwelling unit;

(v) where a property includes a dwelling unit which is occupied and is used for family day care or group family day care and there is a separate building on the property under the control of the occupant of the dwelling unit which does not contain a dwelling unit, neither the separate building nor any portion thereof may be used for family day care or group family day care; and

(vi) where a property includes a dwelling unit which is occupied and is not used for family day care or group family day care and there is a separate building on the property under the control of the occupant of the dwelling unit which does not contain a dwelling unit, upon inspection and approval by OCFS, the separate building or a portion thereof may be used by the occupant for family day care or group family day care by an occupant of the dwelling unit.

(13) Plan of study means a written plan which sets forth reasonable timeframes and shows continuous progress towards completion of the requirements for a degree or credential. If the plan is for a director of a program, the plan must be signed by the director and OCFS, and be overseen and monitored by OCFS. For

all other individuals, the plan must be signed by the participant and the director of the program, and be overseen and monitored by the director.

(14) Preschooler means a child who is at least three years of age and who is not yet enrolled in kindergarten or a higher grade.

(15) Registration means a document issued by OCFS authorizing a registrant to operate a school-age child care program in accordance with Part 414 of this Title, a family day care home in accordance with Part 417 of this Title or a small day care center in accordance with Subpart 418-2 of this Title.

(16) School-aged child means a child under 13 years of age who is enrolled in kindergarten or a higher grade.

(17) Shift means an eight to ten hour period during which care is provided to a group of enrolled children.

(18) Toddler means a child 18 months to 36 months of age.

(19) Business interest means a share in the entity or decision rights within the ownership of the entity. Examples of a business interest include, but are not limited to, being a shareholder, partner or member of the entity.

(20) Safety plan is a written strategy in which the Office imposes restrictions on a licensed or registered child care program when allegations of risk of harm to child(ren) exist in the program or are made against a person working, volunteering, visiting or living at the site of the child care program.

(21) Non-school hours shall mean any time a specific child is not physically required to be present in school as part of the regular school day, including during virtual and/or remote learning.

(22) Those periods of the year in which school is not in session shall mean any time a specific child is not physically required to be present in school as part of the regular school day, including during virtual and/or remote learning.

Section 413.3 Enforcement of Regulations

(a) Types of Enforcement Actions. Enforcement actions which may be undertaken by OCFS include, but are not limited to:

(1) issuance of written inspection reports which include corrective action plans, requests to submit a corrective action plan to OCFS, and notices of intention to initiate enforcement through the imposition of a fine or the limitation, suspension, termination, revocation, or denial of a license or registration;

(2) meetings or telephone conversations between a program and OCFS to discuss corrective action plans;

(3) the holding of hearings to determine if a licensee or registrant has failed to comply with applicable law and regulation which resulted in the assessment of fines, suspension, limitation, revocation, or denial of the license or registration;

(4) determinations, after hearings, that civil penalties should be imposed;

(5) determinations to deny, reject, revoke, terminate, suspend or limit a license or registration;

(6) issuance of orders to cease and desist operation of day care services, commissioner's orders, or orders approved by a justice of the Supreme Court, requiring a person or entity to immediately remedy conditions dangerous to children receiving child day care;

(7) temporary suspension or limitation of a license or registration upon finding that the public health or child's safety or welfare are in imminent danger;

(8) requests to the attorney general to seek injunctive relief against a licensee or registrant for violations or threatened violations of law or regulation;

(9) requests to the attorney general to take such action as is necessary to collect civil penalties, seek criminal prosecution, or to bring about compliance with any outstanding hearing decision or order;

(10) publication in local newspapers of the names and addresses of child day care licensees or registrants whose licenses, registrations or applications for licensure or registration have been rejected, denied, limited, suspended, terminated or revoked, or against whom a fine has been assessed after an administrative hearing;

(11) referrals to law enforcement, including but not limited to district attorneys, of any child day care provider that has been directed to cease and desist operations by the OCFS pursuant to existing law that has not ceased operations; or

(12) requests to the district attorney to take such action as is necessary to seek criminal prosecution.

(b) Current records of visits and findings relative to the issuance, denial, rejection, revocation, termination, suspension or limitation of licenses or registrations, including documentation submitted by applicants or holders of licenses or registrations, must be maintained by OCFS as well as all criminal history records obtained by OCFS through criminal history record checks.

(c) Denial, Rejection, Limitation, Suspension, Revocation or Termination of License or Registration

(1) Any violation of applicable statutes or regulations will be a basis to deny, reject, limit, suspend, revoke or terminate a license or registration.

(2) Consistent with Article 23-A of the Correction Law and OCFS guidelines referenced in subdivision two of section 425 of the Social Services Law, if OCFS is made aware of the existence of a criminal conviction or pending criminal charge concerning the owner of a family day care home, group family day care home, school-age child care program, or child day care center; or concerning any employee, caregiver or volunteer in such homes, programs, or centers; or any person age eighteen or over who resides in such a home, such conviction or charge may be a basis to deny, reject, limit, suspend, revoke or terminate the license or registration. When the OCFS is made aware of a conviction or charge, OCFS shall act in accordance with the provisions of Section 413.4 hereof.

(3) Before a license or registration is revoked or terminated, or when an application for a license or registration is denied or rejected, the applicant for or holder of such license or registration is entitled to a hearing before OCFS.

(4) The request for such hearing must be made in writing within 30 days of the receipt of written notice of the revocation, termination, denial or rejection.

(5) The revocation, termination, denial or rejection will become final if the applicant or holder fails to request a hearing within the 30 day period.

(6) OCFS may require the program to post the revocation or termination of licensure or registration on the premises of the facility.

(d) Suspensions or Limitations of Licenses or Registrations.

(1) A license or registration will be temporarily suspended or limited in its terms without a hearing upon written notification to the holder of the license or registration by OCFS of a finding that the public health or a child's safety or welfare is in imminent danger.

(2) The holder of the license or registration has 10 days from the date of the written notice of the suspension or limitation of the license or registration to request a hearing before OCFS. Such a request must be in writing.

(3) Failure to make such a request will be prima facie evidence that the finding of imminent danger is valid, and the temporary suspension or limitation will continue in effect until OCFS has determined that the condition requiring such suspension or limitation is corrected or the license or registration is permanently revoked or terminated pursuant to subdivision (c) of this section.

(4) If the holder requests a hearing, the temporary suspension or limitation will continue in effect until OCFS has determined that the condition requiring such suspension or limitation is corrected, the license or registration is permanently revoked or terminated pursuant to subdivision (c) of this section, or a hearing decision orders the lifting of the suspension or limitation.

(5) OCFS may require the program to post the notice of suspension or limitation of licensure or registration on the premises of the facility.

(6) When an enforcement action for suspension, limitation or revocation is commenced against a child care provider that owns multiple programs, OCFS is authorized to assess the health and safety of the children in the other program(s) owned and/or operated by such provider and take appropriate action to protect the health and safety of children when warranted.

(e) Fines. Operating without a License or Registration

(1) A fine of up to $500 per day may be assessed against any person for the provision of child day care without a license or registration.

(2) Such a fine will not be imposed until a hearing has been conducted and a decision has been issued. It is the responsibility of OCFS to request and schedule such hearings.

(3) Rectification of operation without a license or registration, either by becoming licensed or registered or by ceasing operation, will not preclude the assessment of a fine for the period of operation without a license or registration.

(f) Fines. Registered and Licensed Programs.

(1) In addition to any other civil or criminal penalty provided by law including but not limited to the denial, rejection, termination, revocation, limitation or suspension of a license or registration, a fine of up to $500 per day may be assessed against any child day care licensee or registrant for any violation of OCFS regulations.

(2) Such a fine will not be imposed until a hearing has been conducted and a decision has been issued. It is the responsibility of OCFS to request and schedule such hearings.

(3) Fines will be determined according to the following classifications:

(i) Class I violations are subject to a maximum fine of $500 a day. A Class I violation is defined as:

(a) any violation of a regulatory requirement which harms a child or places a child at risk of death, serious or protracted disfigurement, or protracted impairment of physical or emotional health, including but not limited to:

(1) the existence of any condition which constitutes or creates a serious fire, safety or health risk, including but not limited to a substantial failure of the facility's fire detection or prevention system or conditions which would prevent or impede emergency evacuation procedures;

(2) the use of corporal punishment or of frightening or humiliating methods of control or discipline;

(3) inadequate or incompetent supervision;

(4) inadequate light, ventilation, sanitation, food, water or heating; or

(5) repeated findings that the facility has exceeded its maximum permitted capacity. The term repeated as used in this subdivision includes any violation noted in more than one written inspection report prepared by OCFS and sent to the child day care licensee or registrant so that corrective action could be taken;

(b) the abuse of a child, as defined in Section 1012(e) of the Family Court Act, who is receiving care at the facility by the owner, caregivers, employees, director or any staff member of the program;

(c) the intentional failure to report instances of alleged child abuse or maltreatment to the Statewide Central Register of Child Abuse and Maltreatment and/or to take appropriate action to protect children when an allegation of such abuse or maltreatment is reported to a caregiver, employee or volunteer; or

(d) the refusal or failure to provide access to the day care facility to a representative from OCFS for the purpose of inspecting the facility for compliance with the requirements of OCFS regulations.

(ii) Class II violations are subject to a maximum fine of $450 a day for first time offense and up to $500 a day for subsequent offenses. A Class II violation is defined as any violation of a regulatory requirement which places a child at risk of physical, mental or emotional harm, including but not limited to:

(a) the use of corporal punishment or of frightening or humiliating methods of control or discipline;

(b) inadequate or incompetent supervision;

(c) inadequate light, ventilation, sanitation, food, water or heating; or

(d) providing care for more than the maximum number of children permitted by the facility's license or registration.

(iii) Class III violations are subject to a maximum fine of $400 a day for a first time offense and no more than $500 a day for a subsequent offense. A Class III violation is defined as any violation of a regulatory requirement other than those included under Class I or II violations.

(4) Where a child care licensee or registrant demonstrates that corrective action has been taken within thirty (30) days of notification of the violation, a fine will not be imposed, except in cases where:

(i) OCFS determines, after a hearing, that:

(a) there has been a total or substantial failure of the facility's fire detection or prevention systems or emergency evacuation procedures prescribed by OCFS regulation;

(b) a caregiver, employee or volunteer has failed to provide adequate and competent supervision as prescribed by OCFS regulation;

(c) a caregiver, employee or volunteer has failed to provide adequate sanitation as required by OCFS regulation and by state and local departments of health;

(d) a caregiver, employee, volunteer, or a household member, has injured a child in care, unreasonably failed to obtain medical attention for a child in care requiring such attention, used corporal punishment against a child in care or has abused or maltreated a child in care; or

(e) the program has violated the same statutory or regulatory standard more than once within a six month period; or

(f) the child care provider, caregiver, employee or volunteer has failed to make a report of suspected child abuse or maltreatment when required to do so pursuant to section four hundred thirteen of this article; or

(g) the child care provider, caregiver, employee or volunteer has submitted to the Office a forged document as defined in section 170.00 of the penal law.

(ii) the Office determines, after a hearing, that a person has refused to obtain a license or registration or continued to operate a child care program after denial of an application, revocation of a license or termination of a registration.

(g) Complaint procedures.

(1) OCFS, through duly authorized representatives or agents of OCFS, may make announced or unannounced inspections of the records and premises of any child day care program, whether or not such program is licensed by or registered with OCFS. To the maximum extent possible, OCFS will make unannounced inspections of the records and premises of any program after OCFS receives a complaint that, if true, would indicate such program does not comply with the regulations of OCFS or with statutory requirements.

(2) Child day care programs must admit inspectors and other representatives of OCFS onto the grounds and premises at any time during their hours of operation as those hours are documented in the application or while children are in care for the purpose of conducting inspections. Such inspectors and representatives must be given free access to the entire grounds and premises used by the program, staff and children, and to program records of the program.

(3) Posting of Compliance History Report and Notice of Suspension or Limitation

(i) The Office shall require the child day care program to immediately post upon receipt, in a prominent place at the program that is visible to parents, a copy of the most recent compliance history report issued to the program by the Office.

(ii) In the event that a child day care program is suspended or limited, OCFS shall require the child day care program to immediately post the notice of suspension or limitation immediately upon receipt. Such notice shall be posted in a prominent place at the program that is visible to parents. A notice of suspension or limitation required by OCFS to be posted by a child day care program must remain posted for a period of at least thirty days or at least until such time as the condition requiring suspension or limitation has been deemed by OCFS to have been corrected or in the event that the condition is not deemed corrected by OCFS, until the program's license, registration or permit has been revoked.

(iii) Any notice required to be posted pursuant to subparagraphs (i) or (ii) of this paragraph must also be posted on the child day care program's website, if possible.

(4) Failure to Comply with the Requirement to be Licensed or Registered

(i) Where investigation or inspection reveals that a program that must be licensed or registered as a child day care program is not duly licensed or registered, OCFS shall provide notice in writing to the program indicating that the program is in violation of the licensing or registration requirements and OCFS shall take such further action as is necessary to cause the program to comply with the law, including directing an unlicensed or unregistered program to cease operation immediately.

(ii) The notice to the program required by subparagraph (i) of this paragraph shall advise parents that the program is closed for failure to comply with the applicable licensing or registration requirements, as applicable, and shall advise the program that the notice is required to be immediately posted in a prominent place at the program that is visible to parents and on the provider's website, if possible.

(5) An unlicensed or unregistered program suspected of operating a child care program for which a license or registration is required must, upon request of the Office, submit a signed statement explaining how the individual providing care is

related to a parent or step-parent of every child in care. The Office may request a signed statement from the parent or step-parent of each child, stating the familial relationship to the individual providing care. In the absence of any documentation, the Office may determine that the individual providing care is not related to the parent or step-parent within the third degree of consanguinity.

(h) Additional Local Standards, Inspections and Participation in Activities

(1) Where an authorized agency, as defined in Social Services Law Section 371, is subsidizing child day care pursuant to New York State Social Services Law, the authorized agency may submit to OCFS, justification for a need to impose additional requirements upon licensed or registered child care programs and a plan to monitor compliance with such additional requirements. No such additional requirements or monitoring may be imposed without the written approval of OCFS.

(2) An authorized agency may refuse to allow a licensed or registered child care program that is not in compliance with Social Services Law, OCFS regulations, or any approved additional requirements of the authorized agency to provide child day care to the child. In accordance with the plan approved by OCFS, an authorized agency shall have the right to make announced or unannounced inspections of the records and premises of any program who provides care for such children, including the right to make inspections prior to subsidized children receiving care in a home where the inspection is for the purpose of determining whether the program is in compliance with applicable law and regulations and any additional requirements imposed upon such program by the authorized agency. Where an authorized agency makes such inspections, the authorized agency shall notify OCFS immediately of any violations of this section or regulations promulgated hereunder, and shall provide OCFS with an inspection report whether or not violations were found, documenting the results of such inspection.

(3) Nothing contained herein shall diminish the authority of OCFS to conduct inspections or provide for inspections through purchase of services. Nothing contained herein shall obligate OCFS to take any action to enforce any additional requirements imposed on licensed or registered programs by an authorized agency.

(4) Individual local social services districts may alter their participation in activities related to arranging for, subsidizing, delivering and monitoring the provision of subsidized child day care provided, however, that the total participation of an individual district in all activities related to the provision of subsidized child day care shall be no less than the participation level engaged in by such individual district as required by Social Services Law Section 390(3)(f).

(i) An applicant, licensee or registrant may apply or reapply as described in Parts 414, 416, 417 and 418, as applicable.

(j) Denial of a new or pending application for licensure or registration, after a program has been involved in an enforcement action.

(1) OCFS shall deny a new application for licensure or registration made by an individual or entity whose license or registration was previously revoked or terminated, for a period of two years from the date that the revocation or termination of the license or registration became finally effective, unless OCFS determines, in its discretion, that approval of the application will not in any way jeopardize the health, safety or welfare of children in care. For this purpose, the date that the revocation or termination became finally effective shall be, as applicable:

(i) the date the revocation or termination became effective based on the notice of revocation or termination;

(ii) the date the hearing decision was issued upholding the revocation or termination;

(iii) the date of issuance of a final court order affirming the revocation or termination or affirming a hearing decision that upheld the revocation or termination; or

(iv) another date mutually agreed upon by OCFS and the licensee or registrant.

(2) OCFS shall deny a new application for licensure or registration made by an individual or entity who is enjoined or otherwise prohibited by a court order from operation of a day care center, group family day care home, family day care home or school-age child care program without a license or registration for a period of two years from the date of the court order unless the court order specifically enjoins the individual or entity from providing day care for a period longer than two years, in which case OCFS shall deny any new application made by the individual or entity while so enjoined.

(3) OCFS shall deny a new application for licensure or registration made by an individual or entity who is assessed a second civil penalty by OCFS for having operated a day care center, group family day care home, family day care home or school-age child care program without a license or registration for a period of two years from the date of the second fine. For this purpose, the date of the second fine shall be either the date upon which the individual or entity signs a stipulation agreement to pay the second fine or the date upon which a hearing decision is issued affirming the determination of OCFS to impose the second fine, as applicable.

(4) A licensee or registrant who surrenders a license or registration while OCFS is engaged in enforcement seeking suspension, revocation or termination of the license or registration, shall be deemed to have had the license or registration revoked or terminated and shall be subject to the prohibitions against licensing or registration pursuant to subparagraph (1) of this paragraph for a period of two years from the date of surrender of the license or registration.

Section 413.4 Criminal History Review and Background Clearances

(a) The following criminal history review and background clearances shall be conducted pursuant to and consistent with the Child Care and Development Block Grant Act for any prospective operator, director, employee or volunteer at a child day care center, small day care center, school-age child care program, group family day care home or family day care home, as defined in section (2) of this part, and any person age eighteen (18) or older living in a prospective, or who begins to live, in a group family day care home or family day care home:

(1) a criminal history record check with the New York State Division of Criminal Justice Services;

(2) a national criminal record check with the Federal Bureau of Investigation;

(3) a search of the New York State Sex Offender Registry; and

(4) a database check of the Statewide Central Register of Child Abuse and Maltreatment in accordance with section four hundred twenty-four-a of the Social Services Law.

(b) The following criminal history review and background clearances shall be conducted pursuant to and consistent with the Child Care and Development Block Grant Act in accordance with a schedule developed by the Office for any existing operator, director, employee or volunteer at a child day care center, small day care center, school-age child care program, group family day care home or family day care home, and any person age eighteen (18) or older living in a group family day care home or a family day care home:

(1) all clearances required pursuant to subdivision (a) of this section; and

(2) a search of the National Sex Offender Registry using the National Crime and Information Center.

(c) In addition to the clearances required pursuant to subdivisions (a) and (b) of this section, the following clearances, for which ongoing criminal history results are not already provided, shall be conducted in accordance with a schedule developed by the Office for any operator, director, employee or volunteer at a child day care center, small day care center, school-age child care program, group family day care home or family day care home, as defined in section (2) of this part, and any person age eighteen (18) or older living or who begins to live in a group family day care home or a family day care home, living or who lived in any state other than New York during the preceding five years:

(1) a search of the criminal history repository in each state other than New York where such person lives or lived during the preceding five years, unless such state's criminal history record information will be provided as part of the clearance conducted pursuant to paragraph (2) of subdivision (a) of this section;

(2) a search of any state sex offender registry or repository in each state other than New York where such person lives or lived during the preceding five years, unless such state's sex offender registry information will be provided as part of

the clearance conducted pursuant to paragraph (2) of subdivision (b) of this section; and

(3) a search of the state-based child abuse or neglect repository of any state other than New York where such person lives or lived during the preceding five years.

(d) Process

(1) Any initial application for a child care license or registration shall include the submission of fingerprint images for any operator, director, employee, or volunteer, and any person age eighteen (18) or older living in a group family day care home or a family day care home.

(2) Every licensee and registrant shall submit fingerprint images for each prospective director, employee, or volunteer, and any person age eighteen (18) or older prospectively living in a group family day care home or family day care home.

(3) The licensee or registrant shall furnish to each prospective director, employee, or volunteer, and any person age eighteen (18) or older prospectively living in a group family day care home or family day care home a fingerprint imaging application form and a description of how the completed fingerprint images will be used.

(4) The clearances required pursuant to this section, other than those for which on-going criminal history results are provided, shall be conducted for any existing operator, director, employee or volunteer at a child day care center, small day care center, school-age child care program, group family day care home or family day care home, as defined in section (2) of this part, and any person age eighteen (18) or older living in a group family day care home or family day care home at least once every five years in accordance with a schedule developed by the Office.

(5) A prospective director, employee or volunteer may begin to work or volunteer at a child day care center, small day care center, school-age child care program, group family day care home or family day care home after completing either the check described in paragraphs (1) or (2) of subdivision (a) of this section.

(6) Pending notification of completion of all required background check components in subdivision (a) of this section, a prospective director, employee or volunteer must always be supervised by an individual who received a qualifying result on the background checks described in paragraph (a) of this section within the past five years. A provisional director, employee or volunteer shall not have unsupervised contact with children in care.

(7) A license or registration cannot be issued until the Office notifies the program that the operator and director, and every employee, volunteer and person age eighteen (18) or older who lives in the home has completed all clearance requirements in this section.

(8) A person who has separated from their role in a child care program within New York State for a period of more than 180 consecutive days is required to submit the clearances pursuant to this section when applying for a role in any child care program.

(e) Ineligibility based on results

(1) Any person or program required to submit to clearances pursuant to this section shall be deemed ineligible, as such term is defined in paragraph (2) of this subdivision, if such person:

(i) refuses to consent to such clearances;

(ii) knowingly makes a materially false statement in connection with such clearances;

(iii) is registered, or is required to be registered, on a state sex offender registry or repository or the national sex offender registry

(iv) has been convicted of a felony consisting of:

(a) murder, as described in section 1111 of Title 18, United States Code;

(b) child abuse or neglect;

(c) a crime against children, including child pornography;

(d) spousal abuse;

(e) a crime involving rape or sexual assault;

(f) kidnapping;

(g) arson;

(h) physical assault or battery; or

(v) has been convicted of a violent misdemeanor committed as an adult against a child, including child abuse, child endangerment and sexual assault, or of a misdemeanor involving child pornography.

(2) For purposes of this subdivision, the term “ineligible” shall mean:

(i) The person who engaged in conduct listed in paragraph (1) of this subdivision shall not be permitted to be an operator, director, employee or volunteer at a child day care program subject to the criminal history review and background clearance process.

(ii) A family day care home or group family day care home shall not be permitted to operate if a person age eighteen (18) or older lives in the residence and engaged in conduct listed in paragraph (1) of this subdivision.

(f) Actions taken based on results

(1) Conviction for a mandatory disqualifying offense

(i) When a clearance conducted pursuant to this section reveals that a prospective or existing operator, director, employee or volunteer at a child day care center, small day care center, school-age child care program, group family day care home or family day care home, as defined in section (2) of this part, and a person age eighteen (18) or older living in a prospective, who begins to live, or is living in a group family day care home or family day care home has been convicted of a crime set forth in subparagraphs (iv) and (v) of paragraph (1) of subdivision (e) of this section may not operate, volunteer in, work in, or live in a child care program.

(2) Conviction for a crime other than a mandatory disqualifying offense

(i) When a clearance conducted pursuant to this section reveals that a prospective operator, director, employee or volunteer at a child day care center, small day care center, school-age child care program, group family day care home or family day care home, as defined in section (2) of this part, and a person age eighteen (18) or older prospectively living in a group family day care home or family day care home has been convicted of a crime not set forth in subparagraphs (iv) and (v) of paragraph (1) of subdivision (e) of this section, the Office may conduct a safety assessment and take one or more of the following actions:

(a) deny the application, consistent with Article 23-A of the Correction Law;

(b) direct that such person not be hired, consistent with Article 23-A of the Correction Law;

(c) take any other appropriate steps to protect the health and safety of the children in care.

(ii) When a clearance conducted pursuant to this section reveals that an existing operator, director, employee or volunteer at a child day care center, small day care center, school-age child care program, group family day care home or family day care home, as defined in section (2) of this part, and a person age eighteen (18) or older living in a group family day care home or family day care home has been convicted of a crime not set forth in subparagraphs (iv) and (v) of paragraph (1) of subdivision (e) of this section, the Office shall conduct a safety assessment and take one or more of the following actions:

(a) deny, limit, suspend, revoke or reject such program's license or registration unless the Office determines, in its discretion, that continued operation will not in any way jeopardize the health and safety of the children in care;

(b) direct that such person be terminated, consistent with Article 23-A of the Correction Law;

(c) take any other appropriate steps to protect the health and safety of the children in care.

(3) Pending criminal charge

(i) When a clearance conducted pursuant to this section reveals that a prospective operator, director, employee or volunteer, or person age eighteen (18) or older living in a group family day care home or family day care home has been charged with a crime, the Office shall hold the application in abeyance until the charge is finally resolved.

(ii) When a clearance conducted pursuant to this section reveals that an existing operator, director, employee, volunteer or person age eighteen (18) or older living in a family day care home or group family day care home has been charged with a crime, the Office shall conduct a safety assessment and take all appropriate steps to protect the health and safety of the children in care. The Office may suspend such program's license or registration based on such a charge when necessary to protect the health and safety of children in care.

(g) Safety Assessment. A safety assessment performed in accordance with this section shall include, but not be limited to:

(1) a review of the duties of the person with the criminal conviction or charge;

(2) the extent to which such person may have contact with children in the day care facility or program; and

(3) the status and nature of the criminal conviction or charge.

(h) Any person who the Office determines, pursuant to this section, should be denied employment or a volunteer position at a child day care program based on an offense not listed in paragraph (1) of subdivision (e) of this section and to which Article 23-A of the Correction Law is applicable, shall have the ability to request a de novo review of the determination, to be held and completed before the employer is notified of such determination. Such person shall have reasonable notice concerning the determination, information regarding how to request a, review of that determination, and an opportunity to provide any additional information that such person deems relevant to such determination. Such person may choose whether the review will be conducted either through submission of written materials to a hearing officer, or to be heard in person in an administrative hearing before a hearing officer, or by video conference in an administrative hearing before a hearing officer if reasonably available. Regardless of the

method in which the review is conducted, where such request is made, the Office shall also have an opportunity to be heard.

(i) Upon receipt of a criminal history record, the Office may request, and is entitled to receive, information pertaining to any crime contained in such criminal history record from any state or local law enforcement agency, district attorney, parole officer, probation officer or court for the purposes of determining whether any grounds relating to such criminal conviction or pending criminal charge exists for denying a license, registration, application or employment.

(j) Notifications. Where the Office or its designee denies or directs a licensee or registrant to deny an application based on the criminal history record, the licensee or registrant must notify the applicant that such criminal history record is the basis of the denial. The Office shall also notify such person that the criminal record check was the basis for the denial of clearance and shall provide such person with a copy of the results of the national criminal record check upon which such action was based, a written statement setting forth the reasons for the denial and a copy of Article 23-A of the Correction Law, and inform such person of his or her right to seek correction of any incorrect information contained in such national record check provided by the federal bureau of investigation. The Office shall not release the content of such results to any non-public entity.

(k) A child day care licensee or registrant must inform the Office when:

(1) any applicant who is subject to criminal history record review in accordance with this section has withdrawn the application or is no longer being considered for the position for which the person applied;

(2) any employee or volunteer who is subject to criminal history record review is no longer employed by or volunteering at the program; and

(3) any person age eighteen (18) or older living in a family or group family day care home who is subject to criminal history record review is no longer living in the residence.

(l) For the purposes of this section, individuals providing services pursuant to the federal Individuals with Disabilities Education Improvement Act (IDEA) Part B, IDEA Part C, Section 504 of the federal Rehabilitation Act of 1973, or Article 89 of the New York Education Law, may be considered volunteers.

Section 413.5 Enforcement Hearings

(a) Before any child care license or registration is suspended or revoked, or when an application for such license or registration is denied, or before civil penalties can be imposed the applicant, licensee or registrant for such registration or license is entitled to a hearing before OCFS, pursuant to Social Services Law Section 22 and these regulations. However, a license or registration shall be temporarily suspended or limited without a hearing upon written notice to the licensee or registrant following a finding that the public health, or an individual's safety or welfare, are in imminent danger based on a finding, in accordance with the regulations of OCFS, that:

(1) serious physical injury or death of a child has occurred;

(2) a condition occurred or exists that places a child at risk of serious physical, mental or emotional harm, or risk of death, serious or protracted disfigurement or protracted impairment of physical or emotional health which may include, but not be limited to:

(i) inadequate supervision;

(ii) overcapacity;

(iii) inappropriate staff-to-child ratios;

(iv) corporal punishment of a child;

(v) failure to obtain appropriate medical treatment for a child, which may include the failure to call 911;

(vi) blocked exits or means of egress; or

(vii) failure to maintain adequate sanitation, heating, cooling or ventilation conditions within the program; or

(3) the program has prevented OCFS from effectively assessing whether the public health, or an individual's safety or welfare, are in imminent danger as a result of a condition that occurred or exists in the program, by taking actions, which may include, but not be limited to:

(i) refusal to provide inspection staff with access to the child day care program, premise or children, as is otherwise required or authorized by law during the program's hours of operation; or

(ii) use of force or verbal or written threats of force made against inspection staff or staff of OCFS.

(b) Suspension or Limitation.

(1) If a licensee or registrant requests a hearing to contest the temporary suspension or limitation, such hearing must be scheduled to commence as soon as possible but in no event later than thirty days after the receipt of the request by OCFS.

(2) Suspension shall continue until the condition requiring suspension or limitation is corrected or until a hearing decision has been issued.

(3) If OCFS determines after a hearing that the temporary suspension or limitation was proper, such suspension or limitation shall be extended until the condition requiring suspension or limitation has been corrected or until the license or registration has been revoked.

(c) Revocation or Denial.

(1) If a licensee or registrant requests a hearing to contest the revocation or denial of an application, such hearing must be scheduled to commence within a reasonable time period.

(d) Cease and Desist.

(1) Any person who is directed to cease and desist operations pursuant to Section 390(3)(d) of the Social Services Law shall be entitled to a hearing before OCFS. Upon request, a hearing must be scheduled to commence as soon as possible but in no event later than 30 days after receipt of the request by OCFS.

(2) A person shall not operate a day care program after being directed to cease and desist operations, regardless of whether a hearing is requested.

(3) If the person does not cease operations, OCFS may impose a civil penalty pursuant to subdivision 11 of Section 390 of the Social Services Law, seek an injunction pursuant to Section 391 of the Social Services Law, refer the person to law enforcement, including district attorneys, pursuant to 413.3(a)(11) and Penal Law Section 260.31, or all three.

(e) Fines. For a hearing held to assess a fine against a licensee, registrant, or unlicensed-provider or unregistered-provider, the notice of hearing must specify the date, time and place of the hearing, and the manner in which the hearing will be conducted and must include a statement of charges.

(1) The statement of charges must specify:

(i) the existence of a violation or violations and the statute(s) or regulation(s) with which the program failed to comply;

(ii) the maximum daily fine which may be imposed and the date upon which initial notice of potential liability for payment of such a fine was given;

(iii) the corrective action which must be taken to rectify the violation; and

(iv) if applicable, a statement that OCFS will seek imposition of a fine regardless of rectification.

(2) The notice of hearing sent pursuant to this paragraph must be delivered in person or by certified mail at least 30 days prior to the date of the hearing. The notice must be sent to:

(i) the child day care facility; and

(ii) the licensee or registrant, who includes any person known to OCFS who, by reason of direct or indirect ownership of the child day care facility, has the ability to direct the facility to take corrective action.

(f) Notice of Hearing.

(1) For a hearing held pursuant to Section 413.5, the notice must be sent to the licensee or registrant, and must specify

(i) the date, time and place of the hearing,

(ii) the manner in which the hearing will be conducted,

(iii) the proposed action and the charges which are the basis for the proposed action. The charges must specify the statutes, rules and regulations with which the licensee or registrant failed to comply and must include a brief statement of the facts pertaining to each violation.

(iv) of his or her opportunity to present evidence and arguments on issues of fact and law at the hearing;

(v) of his or her right to be represented by an attorney or other representative of his or her choice;

(vi) of his or her right to cross-examine witnesses and to examine any document or item offered into evidence;

(vii) that all witnesses will be sworn; and

(viii) that the hearing will be recorded verbatim.

(g) Answer.

(1) The holder of the license or registration or the applicant for initial licensure or registration who has requested a hearing regarding the denial, rejection, termination, revocation, limitation or suspension of a license or registration may file an answer to the allegations contained in a notice of the hearing. The answer must be in writing and must be filed with OCFS and hearing officer not less than ten days prior to the date of hearing.

(2) Any child day care licensee or registrant or unlicensed-provider or unregistered-provider who is advised of the imposition of a potential fine pursuant to this Part must respond in writing to the charges set forth in the notice of hearing. Such response must include a description of any corrective action taken and copies of all written information in the possession of, or maintained by the program which is relevant to the charges and may be unknown to OCFS. Such response must be filed with OCFS and hearing officer not less than ten days prior to the date of hearing.

(h) Pleadings, depositions and discovery.

(1) The pleadings in an enforcement action will consist of the notice of hearing and answer.

(2) Neither formal discovery procedures nor formal procedures for bills of particulars will apply. However, upon application by the applicant, licensee, registrant, unlicensed-provider or unregistered-provider, operating or seeking to operate the child day care program, a more definite and detailed statement will be furnished whenever the hearing officer finds that the statement of charges does not adequately describe such charges. Any statement furnished will be deemed, in all respects, to be part of the original notice of hearing. The hearing officer may grant additional time to respond to the notice of hearing when an application for a more definite and detailed statement has been granted.

(3) Disclosure of evidence by deposition of a party to the hearing or any officer, director, member, agent or employee of a party prior to the hearing will not be permitted, except where the hearing officer determines that special circumstances, as set forth in Section 310(a)(3) of the Civil Practice Law and Rules, require the taking of testimony by deposition.

(i) Who may be present at hearing; authorization of representative.

(1) The applicant or licensee, registrant, unlicensed-provider, unregistered-provider, his or her representative or representatives, counsel or other representatives of OCFS, witnesses of both parties, and any person who may be called by the hearing officer may be present at the hearing, together with such other persons as may be admitted by the hearing officer in his or her discretion. Upon his or her own application, or upon the application of either party, the hearing officer may exclude potential witnesses and those who have given prior testimony from the hearing during the testimony of other witnesses.

(2) An individual, other than an attorney, representing the applicant or licensee, registrant, unlicensed-provider, unregistered-provider must have an appropriate written authorization for representation signed by such person or by an officer, member or director of the corporation, partnership or other organization applying or operating the program when the applicant licensee, registrant, unlicensed-provider, unregistered-provider is not a natural person.

(j) Hearing officer.

(1) The hearing will be conducted by a hearing officer who is an general employed by OCFS for that purpose and who has not been involved in any way with the matter. He or she will have all the powers conferred by law and regulations of OCFS to administer oaths, issue subpoenas, require the production of records and the attendance of witnesses, rule upon requests for adjournment, rule upon objections to the introduction of evidence, and to otherwise regulate the hearing, preserve requirements of due process and effectuate the purpose and provisions of applicable law and regulations.

(k) Conduct of hearing; rights of parties.

(1) The hearing officer will preside and will make all procedural rulings. He or she will make an opening statement describing the nature of the proceedings, the issues and the manner in which the hearing will be conducted.

(2) The rules of evidence as applied in a court of law will not apply, except that privileges recognized by law will be given effect. The hearing officer may exclude testimony or other evidence which is irrelevant or unduly repetitious. The burden of proof at such hearings shall be on OCFS to show that the charges are supported by a preponderance of the evidence.

(3) All testimony will be given under oath or affirmation.

(4) The licensee, registrant, unlicensed-provider, unregistered-provider will be entitled to be represented by an attorney or other representative of his or her choice, to have witnesses give testimony, and to otherwise present relevant and material evidence on his or her behalf, to cross-examine witnesses, and to examine any document or item offered into evidence.

(5) At the discretion of the hearing officer, the licensee, registrant, unlicensed-provider, unregistered-provider may be permitted to attempt to prove by a preponderance of the evidence any matter not included in his or her answer.

(l) Adjournment.

(1) The hearing may be adjourned only for good cause by the hearing officer on his or her own application or at the request of either party.

(m) Hearing Record.

(1) The hearing will be recorded verbatim by either OCFS or a private contractor. Where the hearing is recorded by other than a private contractor, on request made upon OCFS by any party to a hearing, OCFS will prepare the record, together with any transcript of the proceedings, and will furnish a copy of the record and transcript or any part thereof to any party as requested. OCFS is authorized to charge not more than its cost for the preparation of the transcript. Where a private contractor records the hearing, the party requesting a transcript must make all arrangements for the obtainment thereof directly with the private contractor.

(2) The record. The record will include:

(i) all notices, pleadings and intermediate rulings;

(ii) the transcript or recording of the hearing;

(iii) exhibits received into evidence;

(iv) matters officially noticed;

(v) questions and offers of proof, objections thereto and rulings thereon;

(vi) any proposed findings and exceptions;

(vii) any report rendered by the hearing officer; and

(viii) any request for disqualification of a hearing officer.

(n) Hearing Report. After the hearing has been concluded, the hearing officer will submit a report to the commissioner of OCFS or his or her designee containing findings of fact, conclusions of law and a recommended and/or final decision. Findings of fact will be based exclusively on the record of the hearing.

(1) Examination of the record after a hearing. Upon reasonable notice to OCFS, the record of the hearing may be examined by any party to the hearing at OCFS offices during regular business hours or by the Office providing a copy to the requesting party, whichever is deemed more practicable by the Office.

(o) Decision after a hearing. The hearing decision will be made and issued by the commissioner or by a member of his or her staff designated by him or her to consider and make such decisions and must be based exclusively on the record of the hearing.

(1) The decision will be in writing and will describe the issues, recite the relevant facts and pertinent provisions of law and regulations, make appropriate findings, determine the issues, state reasons for the determination and, when appropriate, direct specific action.

(2) A copy of such decision will be mailed to the respective applicant, licensee or registrant and his or her attorney or other designated hearing representative, together with a notice of the right to judicial review in accordance with article 78 of the Civil Practice Law and Rules.

(3) If the hearing before OCFS determines that an application for renewal of a license or registration should have been granted, the renewed license or registration will be dated retroactively to the date of the expiration of the prior license or registration.

(4) In the event the decision is adverse to the applicant, licensee or registrant, he or she must forthwith comply with the specific action ordered in the decision.

Section 413.6 Waivers

(a) A written waiver of one or more non-statutory requirements of this Part or of Part 414, 416, 417 or 418 may be issued by OCFS to an applicant or a licensee or registrant at the time of application or subsequent to the issuance of a license or registration. Licensees or registrants must operate in full compliance with the regulations at all times prior to the issuance of a written waiver.

(b) An applicant or licensee or registrant must submit to OCFS a written request for a waiver on forms provided by OCFS, or approved equivalents. This written application must include:

(1) the specific regulation for which a waiver is sought;

(2) the reason the waiver is necessary; and

(3) a description of what will be done to achieve or maintain the intended purpose of the regulation and to protect the health, safety and well-being of children.

(c) OCFS may require the applicant, licensee or registrant to make physical plant modifications or adopt special methods or procedures to protect the health, safety and well-being of children before a waiver is granted pursuant to this subdivision.

(d) Written approval for a waiver will be granted only upon a determination by OCFS that the proposed waiver will not adversely affect the health, safety or well-being of children, and that the purpose of the regulation which is waived will be met. Waivers may be time limited, at the discretion of OCFS.

(e) Failure to adhere to the terms of the waiver will result in rescission of the waiver and may constitute sufficient cause for OCFS to deny, revoke, suspend or limit a license or registration.

Section 413.7 Criminal History Disqualification Review Process

(a) Any person who the Office determines, pursuant to Section (4) of this Part, should be denied employment or a volunteer position at a child day care program based on an offense not listed in paragraph (1) of subdivision (e) of section (4) of this Part and to which Article 23-A of the Correction Law is applicable, shall have the ability to request a de novo review of the determination, to be held and completed before the employer is notified of such determination. Such person shall have reasonable notice concerning the determination, information regarding how to request a review of that determination, and an opportunity to provide any additional information that such person deems relevant to such determination. Such person may choose whether the review will be conducted either through the submission of written materials to a hearing officer or, to be heard in person in an administrative hearing before a hearing officer, or by video conference in an administrative hearing before a hearing officer if reasonably available. Regardless of the method in which the review is conducted, where such request is made, the Office shall also have an opportunity to be heard.

(b) A review pursuant to this section must be requested within thirty days of receipt of the letter notifying the applicant he or she is ineligible for employment or a volunteer position at a child day care program and that they have a right for review.

(c) The pleadings in a review pursuant to this section will consist of the notice of review and any additional information submitted by either party as being relevant to the determination.

(d) Neither formal discovery procedures nor formal procedures for bills of particulars will apply.

(e) Disclosure of evidence by deposition will not be permitted.

(f) The review will be conducted by a hearing officer who is an attorney employed by the Office for that purpose and who has not been involved in any way with the matter. He or she will have all the powers conferred by law and regulations of the Office to administer oaths, issue subpoenas, require the production of records and the attendance of

witnesses, rule upon requests for adjournment, rule upon objections to the introduction of evidence, and to otherwise regulate the review, preserve requirements of due process, and effectuate the purpose and provisions of applicable law and regulations.

(g) The rules of evidence as applied in a court of law will not apply, except that privileges recognized by law will be given effect. The hearing officer may exclude evidence that is irrelevant or unduly repetitious. The burden of proof at such reviews shall be on the applicant to show that the denial is not supported by substantial evidence and that such person should not have been denied employment and/or the ability to volunteer at a child day care program.

(h) The review may be adjourned only for good cause by the hearing officer on his or her own application or at the request of either party.

(i) An individual, other than an attorney, representing the applicant must have an appropriate written authorization for representation signed by the applicant.

(j) Review

(1) Through submission of written materials

(i) A review through submission of written materials must be scheduled within a reasonable time period of the request.

(ii) Where an applicant for employment or a volunteer position at a child day care program timely requests a review pursuant to this section and requests that the review be conducted through the submission of written materials to a hearing officer, a notice must be sent to the applicant and the Office, and must specify:

(a) the date and location of where such materials must be submitted to the hearing officer and opposing party;

(b) the manner in which the review will be conducted;

(c) the offense(s) which are the basis for the denial, including the statute(s);

(d) that he or she has the opportunity to submit written materials, including evidence of rehabilitation;

(e) that he or she has the right to be represented by an attorney or other representative of his or her choice; and

(f) that he or she has the right to examine any document or item submitted.

(iii) The applicant will be entitled to present relevant and material evidence on his or her behalf, be represented by an attorney or other representative of his or her choice, and examine any document or item submitted.

(iv) The Office will be entitled to submit proof of the conviction(s), the safety assessment, and review of the factors enumerated in Article 23-A of the Correction Law. The hearing officer will accept the information provided to the Office by the Division of Criminal Justice Services as proof of the criminal convictions.

(v) The record of a review on written materials will include:

(a) all pleadings;

(b) all written materials submitted;

(c) any matters officially noticed;

(d) all proposed findings and exceptions;

(e) any report rendered by the hearing officer; and

(f) any request for disqualification of a hearing officer.

(2) To be heard in person in an administrative hearing

(i) A hearing pursuant to this section must be scheduled to commence within a reasonable time period of the request.

(ii) Where an applicant for employment or a volunteer position at a child day care program timely requests a review pursuant to this section and requests that the review be conducted through an administrative hearing before a hearing officer, a notice must be sent to the applicant and the Office, and must specify:

(a) the date, time, and place of the hearing;

(b) the manner in which the hearing will be conducted;

(c) the offense(s) which are the basis for the denial, including the statute(s);

(d) that he or she has the opportunity to call witnesses, present evidence and arguments on issues of fact and law at the hearing, including evidence of rehabilitation;

(e) that he or she has the right to be represented by an attorney or other representative of his or her choice;

(f) that he or she has the right to cross-examine witnesses and examine any document or item offered into evidence;

(g) that all witnesses will be sworn; and

(h) that the hearing will be recorded verbatim.

(iii) The applicant will be entitled to be represented by an attorney or other representative of his or her choice, to have witnesses give testimony, to present relevant and material evidence on his or her behalf, to cross-examine witnesses, and to examine any document or item offered into evidence.

(iv) The Office will be entitled to submit proof of the conviction(s), the safety assessment, and review of the factors enumerated in Article 23-A of the Correction Law. The hearing officer will accept the information provided to the Office by the Division of Criminal Justice Services as proof of the criminal convictions.

(v) The applicant, his or her representative(s), counsel, other representatives of the Office, witnesses of both parties, and any person who may be called by the hearing officer may be present at the hearing, together with such other persons as may be admitted by the hearing officer in his or her discretion. Upon his or her own application, or upon the application of either party, the hearing officer may exclude potential witnesses and those who have given prior testimony from the hearing during the testimony of other witnesses.

(vi) The hearing officer will preside and will make all procedural rulings. He or she will make an opening statement describing the nature of the proceedings, the issues, and the manner in which the hearing will be conducted.

(vii) All testimony will be given under oath or affirmation.

(viii) All hearings will be recorded verbatim by either the Office or a private contractor. Where the hearing is recorded by other than a private contractor, on request made upon the Office by any party to a hearing, the Office will prepare any transcript of the proceedings, and will furnish a copy of the transcript or any part thereof to any party as requested. At the applicant's request, the Office can provide a digital audio file of the hearing in a file format determined by the Office at a lower cost rather than furnishing a transcript. The Office is authorized to charge not more than its cost for the preparation of the transcript. Where a private contractor records the hearing, the party requesting a transcript must make all arrangements for the obtainment thereof directly with the private contractor.

(ix) The record of a hearing will include:

(a) all pleadings and intermediate rulings;

(b) the transcript or recording of the hearing;

(c) all exhibits received into evidence;

(d) any matters officially noticed;

(e) all questions and offers of proof, objections thereto, and rulings thereon;

(f) all proposed findings and exceptions;

(g) any report rendered by the hearing officer; and

(h) any request for disqualification of a hearing officer.

(k) After the hearing has concluded, the hearing officer will submit a report to the Commissioner of the Office or his or her designee containing findings of fact, conclusions of law, and a recommended and/or final decision. Findings of fact will be based exclusively on the record of the review.

(l) The decision will be made and issued by the commissioner or his or her designee and must be based exclusively on the record of the review.

(1) The decision will be in writing and will describe the issues, recite the relevant facts and pertinent provisions of law and regulations, make appropriate findings, determine the issues, state reasons for the determination, and direct specific action.

(2) A copy of the decision will be mailed to the applicant and his or her attorney or other designated representative and the Office, together with a notice of the right to judicial review in accordance with Article 78 of the Civil Practice Law and Rules.

(3) If the decision determines that an application for employment and/or the ability to volunteer at a child day care program should not have been denied, the applicant's criminal history shall not be a bar when considering his or her eligibility pursuant to section 4 of this Part.

(4) In the event the decision is adverse to the applicant, the employer will be notified that the applicant has been denied such role.

(m) Upon reasonable notice to the Office, the record of review may be examined by any party to the review at the offices of the Bureau of Special Hearings during regular business hours or by the Office preparing and providing a copy of the record to any party as requested, whichever is deemed more practicable by the Office.